Reset Form

PETITION TO ESTABLISH CHILD SUPPORT

NAVAJO COUNTY

INSTRUCTIONS AND FORMS

Provided as a Public Service by

MICHAEL SAMPLE
Clerk of the Superior Court

INSTRUCTIONS AND FORMS FOR COMPLETING
REQUEST TO ESTABLISH CHILD SUPPORT

These instructions are intended to assist you. If additional information is needed, you may wish to contact an attorney or the Division of Child Support Enforcement.

COMPLETE THIS PETITION IF:

- You are providing support for or have physical legal decision-making of the child(ren) of the other party; AND

- You wish to establish a support obligation for the natural or adoptive parent of the child(ren).

TO COMPLETE THIS PETITION, YOU WILL NEED: the name and address of the other party and a Self-Addressed Stamped Envelope.

NOTE: There may be a fee for filing this "Petition to Establish Child Support. If you cannot pay these fees, you may qualify for a deferral or waiver of fees. The Clerk of the Superior Court has the necessary forms to ask for a deferral or waiver. **(*Check with the Attorney General's Office at 520.251.5999 to see if you can file the "Petition to Establish Child Support" without paying a filing fee.)***

FOLLOW THESE INSTRUCTIONS NUMBERED TO MATCH THE IDENTIFYING NUMBERS ON THE FORM. TYPE OR PRINT NEATLY USING BLACK INK.

ORDER TO APPEAR (REQUEST TO ESTABLISH CHILD SUPPORT)

1. Fill in your name, address and telephone number as the person who is requesting to establish child support. (An attorney must also list the name of the person represented and the attorney's State Bar Number.)

2. Fill in the name of the person who is requesting child support to be established. Or fill in the name of the person listed if there is an existing case filed in the Pinal County Superior Court where legal decision-making or parenting time of the child(ren) was issued.

3. Fill in the name of the person whom you are requesting to pay child support. Or fill in the name of the person listed if there is an existing case filed in Pinal County Superior Court where legal decision-making or parenting time of the child(ren) was issued.

4. Fill in the case number shown on the document you are using for item 2 and 3, if any.

5. Fill in the name and address of the person whom you are requesting pay child support.

WHEN YOU HAVE COMPLETED THE "PETITION TO ESTABLISH" AND "ORDER TO APPEAR RE: PETITION TO ESTABLISH" FILE BOTH FORMS WITH THE CLERK OF THE SUPERIOR COURT.

- The deputy Clerk will submit your request to the Judges office.
- The Judge's office will issue a hearing date.
- Self-Addresses Stamped Envelope.

WHEN YOU HAVE COMPLETED THIS FORM:

- You must complete the Parent's Worksheet for Child Support. (Visit www.azcourts.gov/familylaw)
- File the forms with the Clerk of the Superior Court and get your hearing date at a later time in the mail.
- When you have the hearing date, immediately serve the Respondent with a copy of the Request and Order to Appear and Parent's Worksheet for Child Support. To "serve" means to use legally required method of delivering notice of documents. The most common method of service is personal service by a private process server or Sheriff Deputy. Other methods of service are available; see Arizona Rules of Civil Procedures and Arizona Rules of Family Law Procedures.

Name of Person Filing: _____
Telephone Number: _____
Email Address: _____
ATLAS Number (if applicable) _____
☐ Representing Self (No Attorney) or ☐ Represented by Attorney
If Attorney, Bar Number: _____

SUPERIOR COURT OF ARIZONA
NAVAJO COUNTY

_____
Name of Petitioner

CASE NUMBER: S0900

SENSITIVE DATA SHEET
(CONFIDENTIAL RECORD)

_____
Name of Respondent

HONORABLE: _____

Fill out. File with Clerk of Court. Social Security Numbers should appear on this form only and should be omitted from other court forms. Access Confidential pursuant to A.R.F.L.P. 43(G)(1).

A. Personal Information:	Petitioner	Respondent
Name		
Gender	☐ Male or ☐ Female	☐ Male or ☐ Female
Date of Birth (Month/Day/Year)		
Social Security Number		
Driver's License Number		

WARNING: DO NOT INCLUDE MAILING ADDRESS ON THIS FORM IF REQUESTING ADDRESS PROTECTION

Mailing Address		
City, State, Zip Code		
Contact Phone		
Email Address		
Current Employer Name		
Employer Address		
Employer City, State, Zip Code		

Employer Telephone Number		
Employer Fax Number		

B.	**Child(ren) Information:**		
Child Name	**Gender**	**Child Social Security Number**	**Child Date of Birth**

Clerk of Court Issued:

***For Court Use Only. NOT Public Record.**
Do NOT Provide a Copy of This Document to The Other Party.

Arizona Superior Court, Navajo County
Family Court Cover Sheet

CASE NUMBER **S0900** _____ ATLAS NUMBER(S) _____	Judge _____

PETITIONER'S NAME AND ADDRESS	**RESPONDENT'S NAME AND ADDRESS**
Name: Address: City/State/Zip: Phone Number: Email Address: DOB:	Name: Address: City/State/Zip: Phone Number: Email Address: DOB:
PETITIONER'S ATTORNEY Name/State Bar #: Address: City/State/Zip: Phone Number:	**EMERGENCY ORDER SOUGHT** ☐ Order of Protection ☐ Temporary Order ☐ Other _____ (Specify)
Do you or the other party need an interpreter? ☐ Yes ☐ No If yes, what language: _____	FEES: ☐ PAID ☐ NOT PAID - REASON ☐ Political Subdivision/Government Agency ☐ Deferred ☐ Waived

ACTION REQUESTED: Check Only One Box

DISSOLUTION (Divorce)
☐ With Children
☐ Without Children

☐ Legal Separation
☐ Paternity/Maternity
☐ Annulment
☐ Legal Decision-Making

☐ Order of Protection
☐ Foreign Judgment
☐ Domesticated Decree
☐ Foreign Judgment for Legal Decision-Making
☐ Establish Support
☐ Habeas Corpus
☐ Visitation
☐ Emergency Order of Protection
☐ Other _____
(Specify)

I receive or have received public assistance which may include AFDC, TANF, or AHCCS for my child(ren) or me.

☐ Yes ☐ No

I have a case with the Division of Child Support Enforcement.

☐ Yes ☐ No

If yes, list the case number(s)

_____

Do you currently have ANY other Navajo County Superior Court cases?

☐ Yes ☐ No

If yes, list the case number(s)

_____

Have you ever had ANY other Navajo County Superior Court cases?

☐ Yes ☐ No

If yes, list the case number(s)

_____

PETITIONER'S DECLARATION OF INFORMATION FOR CONCILIATION COURT

The wife is pregnant: ☐ Yes ☐ No

The respondent is being served by publication: ☐ Yes ☐ No

Please enter the number of children under the age of 18 of either or both parties who are in Legal

Decision-Making of either or both parties: _____

NAMES OF MINOR CHILDREN & DATE OF BIRTH:	**NAMES OF MINOR CHILDREN & DATE OF BIRTH:**
_____	_____
_____	_____
_____	_____

There is an agreement as to the parenting arrangements of the minor children:

☐ Yes ☐ No

To the best of my knowledge, all information is true and correct.

_____

Attorney / Pro Per Signature ***(If no attorney, your signature is required)***

Person Filing: _____
Address (if not protected):_____
City, State, Zip Code:_____
Daytime Telephone Numbers:_____
Email Address:_____
ATLAS Number:_____
Representing [ ] Self or [ ] Lawyer for _____
Lawyer Bar Number:_____

FOR CLERK'S USE ONLY

SUPERIOR COURT OF ARIZONA
IN NAVAJO COUNTY

_____
Petitioner

Case Number: S0900

PETITION TO ESTABLISH CHILD SUPPORT

_____
Respondent

STATEMENTS TO THE COURT.

1. INFORMATION ABOUT ME, THE PETITIONER.

Name: _____
Address: _____
County of Residence: _____ Date of Birth: _____
Occupation: _____
My relationship to the child(ren) for whom I want a child support order:

- [ ] I am the Mother
- [ ] I am the Father
- [ ] Other: (Explain) _____

2. INFORMATION ABOUT OTHER PARTY, THE RESPONDENT.

Name: _____
Address: _____
County of Residence: _____ Date of Birth: _____
Occupation: _____

Respondent's relationship to the child(ren) for whom I want a child support order:

- ☐ Respondent is the Mother
- ☐ Respondent is the Father
- ☐ Other: (Explain) _____

3. ☐ **VENUE.** This is the proper court to bring this lawsuit under Arizona law because it is the county of residence of the petitioner, or the respondent, or the minor child(ren).

4. **JURISDICTION.** This Court has jurisdiction under A.R.S. §25-502 to order a party to pay child support because:

- ☐ The Respondent is a resident of Arizona
- ☐ I believe that I will personally serve the Respondent in Arizona
- ☐ The Respondent agrees to have the case heard here and will file written papers in the court case
- ☐ The Respondent lived with the minor child(ren) in this state at some time
- ☐ The Respondent lived in this state and provided pre-birth expenses or support for the minor child(ren)
- ☐ The minor child(ren) lives in this state as a result of the acts or directions of the Respondent

5. **INFORMATION ABOUT MINOR CHILD(REN).**

A. Child's Name: _____ Date of Birth: _____
Current Address: _____
City, State: _____
How long at this address: _____ County: _____

B. Child's Name: _____ Date of Birth: _____
Current Address: _____
City, State: _____
How long at this address: _____ County: _____

C. Child's Name: _____ Date of Birth: _____
Current Address: _____
City, State: _____
How long at this address: _____ County: _____

D. Child's Name: _____ Date of Birth: _____
Current Address: _____
City, State: _____
How long at this address: _____ County: _____

☐ Continues on attached page(s) made part of this document by reference.

6. PATERNITY. Paternity was established by: (Check one box.)

☐ A court Order for Paternity from *this* county or previously transferred to this county stating that _____ is the natural father of the minor child(ren) included in this Petition. (A.R.S. § 25-502(c))

☐ Both parents signing an Acknowledgment of Paternity through the Hospital Paternity Program or other means provided by law after July 18, 1996, and a birth certificate listing the name of the father was issued as a result.

☐ Parties were legally married when child(ren) was (were) born, conceived, or adopted.

7. CHILD SUPPORT FOR MINOR CHILD(REN). (Check one box.)

☐ To my knowledge **there is no child support order** for the minor child(ren) and the court should order child support in this case along with legal decision-making (custody), and parenting time.

☐ ☐ Petitioner ☐ Respondent made **voluntary / direct support payments** that need to be taken into account, if past support is requested.

☐ ☐ Petitioner ☐ Respondent owes **past support** for the period between:

☐ the **date this petition was filed** and the date current child support is ordered.

OR

☐ the **date the parties started living apart**, but not more than three years before the date this petition was filed**,** and the date current child support is ordered.

Case Number: _____

REQUESTS OF THE COURT.

A. CHILD SUPPORT.

☐ Order that **child support** be paid by ☐ **Petitioner** ☐ **Respondent** in an amount as determined by the court under the Arizona Child Support Guidelines.

Support payments to begin on the first day of the month after the Judge or Commissioner signs the Paternity Order with all payments, plus the statutory handling fee, to be paid through the Support Payment Clearinghouse, PO Box 52107, Phoenix, Arizona 85072-7107 by income withholding order.

☐ Order that **past child support** be paid by ☐ **Petitioner** ☐ **Respondent** in an amount determined by using a retroactive application of the Arizona Child Support Guidelines taking into account any amount of **temporary or voluntary / direct support** that has been paid. Support to be paid as defined above.

B. MEDICAL, DENTAL, VISION INSURANCE AND HEALTH CARE FOR THE MINOR CHILD(REN). Order that:

☐ **Petitioner** should be responsible for providing ☐ medical ☐ dental ☐ vision care insurance.

☐ **Respondent** should be responsible for providing ☐ medical ☐ dental ☐ vision care insurance.

☐ Petitioner and Respondent will share all reasonable **unreimbursed medical, dental, vision care, and health-related expenses** incurred for the minor child(ren)in proportion to their respective incomes.

C. Order payment of costs and attorney fees, if appropriate.

D. Order such other relief as deemed necessary and appropriate by the court.

Case Number: _____

UNDER OATH OR AFFIRMATION.

I swear or affirm under penalty of perjury that the contents of this document are true and correct to the best of my knowledge and belief.

_____ _____

Date Petitioner's Signature

STATE OF _____

COUNTY OF _____

Sworn to or Affirmed before me this _____ (date)

by _____.

(notary seal) _____

Deputy Clerk or Notary Public

CHILD SUPPORT CALCULATOR for
Parent's Worksheet to determine Child Support Amount

The Court Self Help website offers a Free Child Support Calculator and Fillable Forms.

Simple • Quick • Accurate

If you have a personal computer with Internet access, you can access the Child Support Calculator at:

http://www.azcourts.gov/familylaw

You may also visit the Law Library at the Pinal County Superior Court House for access and further assistance.

Calculate Support for Parent's Worksheet

Your computer must be connected to a printer. Begin by selecting which Child Support Calculator applies to you, 2005 or 2011, and then press the Tab button on your keyboard to move through the form, or click on each field with your mouse.

Enter the appropriate information in each blank field. Not every blank field needs to be completed in every case. If you are not sure whether you should complete a blank field, click on the question mark (?) next to the blank field. You will receive additional information in accordance with the Arizona Child Support Guidelines.

When you have completed the Entry Form, click the "Print Worksheet" button to receive an estimate of the amount of child support the non- custodial parent may have to pay to the custodial parent for the support of their child(ren).

After clicking on "Print Worksheet" the form will automatically be filled in with the information from the Entry Form. Print the form and bring it with you at the time of filing your initial paperwork.

The Court Self Help website also offers the following fillable forms required to set up Child Support, select the "Forms" tab to make your selection:

- Child Support Order
- Post Paternity Establishment of Child Support Order
- Paternity Judgment Child Support Order

To have the Child Support amount automatically deducted from payroll, either of the below forms must be submitted:

- Income Withholding Order – May be completed by either party
- Current Employer Information – To be completed by the non-custodial parent/obligor/payer only

For Clerk Use Only

(1) Name of Person Filing: _____

Your Address: _____

Your City, State, Zip Code: _____

Your Telephone Number: _____

ATLAS Number (if applicable): _____

Attorney Bar Number (if applicable): _____

Representing: ☐ Self (Without an Attorney)

Or Attorney for ☐ Petitioner ☐ Respondent

SUPERIOR COURT OF ARIZONA
IN NAVAJO COUNTY

PARENT'S WORKSHEET FOR CHILD SUPPORT

(3) _____) **(5)** Case No. _____
Name of Petitioner)
)
(4) _____) **(6)** ATLAS No. _____
Name of Respondent)

(7) Name of parent filing: _____

(8) Date prepared: _____

(9) In this case, I am the [ ] Petitioner [ ] Respondent [ ] Represented by Attorney

(10) Time-sharing arrangement: [ ] Essentially equal [ ] Mostly with Father [ ] Mostly with Mother

(11) Child(ren)'s names (First, middle initial, and last name)	Date of birth	Age

Presumptive termination date _____ Actual termination date _____

Youngest grade _____

Number of minor children _____ Number of children age 12 or over _____

(12) Gross Income figures for the OTHER PARENT are:

[ ] **ACTUAL,** with proof, such as a recent W2 or pay stub attached, or other party's signed statement.

[ ] **ESTIMATED,** based on facts or knowledge of pay before promotion or of others in similar job.

[ ] **ATTRIBUTED**, based on what other party could and should be earning (see Guidelines 5e).

Case No._____

	Father	Mother
Gross Monthly Income (13)	$ _____	$ _____
Spousal maintenance paid **(14)**	$-_____	$-_____
Spousal maintenance received **(15)**	$+_____	$+_____
Custodial parent of other children subject of court order(s) **(16)** [ ] Father [ ] Mother	$- _____	$- _____
Court-ordered child support paid for children of other relationships **(17)**	$- _____	$- _____
Other natural or adopted children not subject of court order(s) **(18)** [ ] Father [ ] Mother	$- _____	$- _____
Standard deduction	$- _____	$- _____
Alternate Deduction (only if less than standard deduction)	$- _____	$- _____
Adjusted Gross Monthly Income (19)	$ _____	$ _____
Combined Adjusted Gross Income (20)	$ _____	
Basic Child Support Obligation for [ ] **children (21)**	$ _____	
***Additions*:**		
Adjusted for [ ] children over age 12 at [ ]% **(22)**	$ _____	
Medical, dental and vision insurance paid **(23)**	$ _____	$ _____
Monthly childcare costs **(24)** for [ ] child(ren)	$ _____	$ _____
Less federal tax credit allowed to custodian at [ ]%	$ _____	$ _____
Extra education expenses paid **(25)**	$ _____	$ _____
Extraordinary (gifted or handicapped) child expenses paid **(26)**	$ _____	$ _____
Subtotal (27)	$ _____	$ _____
Total Adjustments for Costs (28)	$ _____	
Total Child Support Obligation (29)	$ _____	
Each parent's proportionate percentage of combined income (30)	_____%	_____%
Each parent's proportionate share of the total support obligation (31)	$ _____	$ _____
Less paying parent's costs (32)	$ _____	$ _____
Costs associated with parenting time (33): Table A [ ]	Table B [ ]	
No. of days _____		
Line (18) x _____%	$ _____	$ _____
Adjustments subtotal (34)	$ _____	$ _____
Preliminary Child Support Amount (35)	$ _____	$ _____

Case No._____

	Father	Mother
Self-Support Reserve Test for Payor (36)		
Line (16) $_____		
Less paid arrears $_____		
Less $1,115	$ _____	$ _____
Child support amount to be paid by (37):		
[ ] Father [ ] Mother	$ _____	$ _____
Travel related to parenting time (38)	_____%	_____%
Medical, dental, and vision costs not paid by insurance (39)	_____%	_____%

1)
Name of Person Filing: _____
Street Address: _____
City, State, Zip Code: _____
Telephone Number: _____
Email Address: _____
ATLAS Number (if applicable) _____
☐ **Representing Self (No Attorney)** **or** ☐ **Represented by Attorney**
If Attorney, Bar Number: _____

SUPERIOR COURT OF ARIZONA
NAVAJO COUNTY

2) _____
Name of Petitioner

3) _____
Name of Respondent

4) **CASE NUMBER:** **S0900**

ORDER TO APPEAR RE:
REQUEST TO ESTABLISH
CHILD SUPPORT

HONORABLE: _____

5)
To: _____
(Person Asked to Provide Support)

_____
(Address)

The Above Verified Request to Establish Child Support Having Been Filed:

IT IS ORDERED that you appear for hearing as follows:

DATE AND TIME OF HEARING: _____

PLACE OF HEARING:

☐ **Navajo County Superior Court**
100 E Code Talkers Dr
Holbrook, Arizona 86025

☐ **Navajo County Superior Court**
_____
_____

To show why the court should not enter its order granting the relief asked for in the attached Request to Establish Child Support and Parent's Worksheet.

IT IS FURTHER ORDERED that a copy of this Request to Establish Child Support, Parent's Worksheet and Order to Appear be served on you.

FAILURE TO APPEAR AT THE TIME REQUIRED, EITHER IN PERSON OR BY AN ATTORNEY MAY RESULT IN AN ORDER GRANTING ALL RELIEF REQUESTED OR MAY CAUSE A CIVIL WARRANT TO ISSUE FOR YOUR ARREST.

Dated: _____ _____

(Judge / Special Commissioner)

Person Filing: _____
Address (if not protected):_____
City, State, Zip Code:_____
Telephone Numbers:_____
Email Address:_____
ATLAS Number:_____
Representing [ ] Self or [ ] Lawyer for _____
Lawyer Bar Number:_____

FOR CLERK USE ONLY

SUPERIOR COURT OF ARIZONA
IN NAVAJO COUNTY

_____
Petitioner

_____
Respondent

Case Number: **S0900**_____

CHILD SUPPORT ORDER

THE COURT FINDS that:

1. _____, **Petitioner**, and _____, **Respondent**, owe a duty to support the following child(ren):

Name	**Date of Birth**
_____	_____
_____	_____
_____	_____
_____	_____

2. **CHILD SUPPORT GUIDELINES:** The required financial factors and any discretionary adjustments pursuant to the Arizona Child Support Guidelines are as set forth in the Parent's Worksheet for Child Support, attached and incorporated herein by reference.

3. **CHILD SUPPORT:**

[ ] [ ] **Petitioner** [ ] **Respondent** is obligated to pay child support to [ ] **Petitioner** [ ] **Respondent** in the amount of $_____ per month pursuant to the Arizona Child Support Guidelines without deviation.

☐ ☐ **Petitioner** ☐ **Respondent** is obligated to pay child support to ☐ **Petitioner** ☐ **Respondent** in the amount of $_____ per month pursuant to the Arizona Child Support Guidelines without deviation. This amount is an appropriate amount to award for child support in this case except that the Court finds it more appropriate and just to make a **rounding adjustment** to the exact guideline amount for ease of calculation to $_____ per month.

☐ ☐ **Petitioner** ☐ **Respondent** is obligated to pay child support to ☐ **Petitioner** ☐ **Respondent** in the amount of $_____ per month pursuant to the Arizona Child Support Guidelines. Application of the child support guidelines in this case is inappropriate or unjust. The Court has considered the best interests of the child in determining that a **deviation** is appropriate.

After deviation the child support order is $_____ per month.

☐ ☐ **Petitioner** ☐ **Respondent** is obligated to pay child support to ☐ **Petitioner** ☐ **Respondent** in the amount of $_____ per month pursuant to the Arizona Child Support Guidelines. Application of the child support guidelines in this case is inappropriate or unjust. The Court has considered the best interests of the child in determining that a **deviation** is appropriate.

After deviation the child support order is $_____ per month. Further, the parties have entered into a **written agreement** or their agreement is on the record and is free of duress and coercion with knowledge of the amount of child support that would have been ordered under the guidelines but for the agreement.

Reason(s) for deviation:

_____

_____

4. SUPPORT ARREARS:

☐ ☐ **Petitioner** ☐ **Respondent** owes child support arrearages to ☐ **Petitioner** ☐ **Respondent** in the total amount of $_____ for the time period of _____ through _____ plus accrued interest on prior child support arrearages due of $_____ calculated through the date of _____.

☐ The court finds **no child support arrearages due** and owing.

☐ **No evidence** was presented in support of child support arrearages.

5. PAST SUPPORT:

☐ It is appropriate to award ☐ **Petitioner** ☐ **Respondent** an additional judgment for past support in the amount of $_____ for the **period between the filing of this current petition** and the date current child support is ordered to begin.

☐ **Temporary support or voluntary / direct support payments** in the amount of $_____ were paid during the period above; therefore the past support is adjusted to $_____.

☐ It is appropriate to award ☐ **Petitioner** ☐ **Respondent** an additional judgment in the amount of $_____ for past support owed from the **date of separation, but not more than three years** before the date of filing the current petition.

☐ **Temporary support or voluntary / direct support payments** in the amount of $_____ were paid during the period above; therefore the past support is adjusted to $_____.

☐ The court finds **no past support amount due** and owing.

☐ **No evidence** was presented in support of past child support.

☐ The court finds **no temporary support or voluntary / direct support** payments were paid.

☐ **No evidence** was presented in support temporary support or voluntary / direct support payments.

Case Number: _____

IT IS ORDERED that:

A. CHILD SUPPORT:

☐ ☐ **Petitioner** ☐ **Respondent** shall pay child support to ☐ **Petitioner** ☐ **Respondent** in the sum of $_____ per month payable by income withholding order on the first day of each month commencing _____.

B. SUPPORT ARREARAGES JUDGMENT:

☐ ☐ **Petitioner** ☐ **Respondent** is granted judgment against ☐ **Petitioner** ☐ **Respondent** in the sum of $_____ as and for child support arrearages for the period of _____ through the date of _____ together with interest on said sum at the legal rate of 10% per annum until paid in full plus additional accrued interest on prior child support judgments of $_____ calculated through the date of _____.

☐ **Petitioner** ☐ **Respondent** shall pay, in addition to ☐ his ☐ her current support payment, the sum of $_____ per month toward this judgment, payable on the first day of each month commencing _____ until paid in full.

☐ **No judgment** for child support arrearages is entered.

C. PAST SUPPORT JUDGMENT:

☐ ☐ **Petitioner** ☐ **Respondent** is granted a past support judgment against ☐ **Petitioner** ☐ **Respondent** in the additional amount of $_____. ☐ **Petitioner** ☐ **Respondent** shall pay the additional amount of $_____ per month toward this judgment, payable on the first day of each month commencing _____ until paid in full.

☐ **No judgment** for past support is entered.

D. PAYMENTS AND CLEARINGHOUSE: All payments, plus the statutory handling fee, shall be made through the Support Payment Clearinghouse pursuant to an Order of Assignment or Income Withholding Order signed this date. Any time the full amount of support ordered is not withheld, the obligor (the party being ordered to pay) remains responsible for the full monthly amount ordered. Payments not made directly through the Support Payment Clearinghouse shall

be considered *gifts* unless otherwise ordered. All payments shall be made payable to and mailed directly to:

Support Payment Clearinghouse
PO Box 52107
Phoenix, AZ 85072-2107

Payments must include the ☐ Petitioner's ☐ Respondent's name and ATLAS number. Pursuant to A.R.S. § 25-322, the parties shall submit current address information in writing to the Clerk of the Superior Court and the Support Payment Clearinghouse immediately. The obligor (party being ordered to pay) shall submit the names and addresses of his or her employers or other payors within 10 days. Both parties shall submit address changes within 10 days of the change.

E. TOTAL MONTHLY PAYMENTS: ☐ **Petitioner** ☐ **Respondent** shall make total monthly payments to ☐ **Petitioner** ☐ **Respondent** of $_____ per month payable on the first day of each month commencing _____ as follows:

Monthly Payments:

Current child support payment as ordered above:	$_____
Current spousal maintenance payment:	$_____
Support arrearage payment:	$_____
Clearinghouse handling fee:	$ 8.00
Total monthly payment:	**$_____**

F. MEDICAL, DENTAL, AND VISION INSURANCE FOR THE MINOR CHILD(REN) (A.R.S. § 25-320(J)):

☐ ☐ **Petitioner** ☐ **Respondent** shall be individually responsible for providing medical insurance for the minor child(ren) and shall continue to pay premiums for any medical, dental and vision policies covering the child(ren) that are currently included in the incorporated Parent's Worksheet for Child Support.

☐ ☐ **Petitioner** ☐ **Respondent** shall be individually responsible for providing medical insurance for the minor child(ren) of the parties as soon as it becomes accessible and available at a reasonable cost, as neither party currently has the ability to obtain such medical insurance.

Medical, dental, and vision insurance, payments and expenses are based on the information in the Parent's Worksheet for Child Support attached hereto and incorporated by reference.

The party ordered to pay must keep the other party informed of the insurance company name, address and telephone number, and must give the other party the documents necessary to submit insurance claims. An insurance card must be provided to the other party. Notification must also be provided to the other party if coverage is no longer being provided for the child(ren).

G. NON-COVERED MEDICAL EXPENSES: ☐ **Petitioner** is ordered to pay _____% and **Respondent** is ordered to pay _____% of all reasonable uncovered and/or uninsured medical, dental, vision, prescription and other health care charges for the minor child(ren). A request for payment or reimbursement of uninsured medical, dental and/or vision costs must be provided to the other party within 180 days after the date the services occur. The party responsible for payment or reimbursement must pay their share, as ordered by the court, or make acceptable payment arrangements with the provider or person entitled to reimbursement within 45 days after receipt of the request.

H. TRAVEL EXPENSES: The costs of travel related to parenting time over 100 miles away shall be shared as follows: **Petitioner** _____% **Respondent** _____%

I. OTHER FINDINGS AND ORDERS:

_____

_____

_____

_____

J. INFORMATION EXCHANGE: The parties shall exchange financial information such as copies of tax returns, financial affidavits, and earnings statements every twenty-four months. At the time the parties exchange financial information, they shall also exchange residential addresses and the names and addresses of their employers unless the court has ordered otherwise.

K. TAX EXEMPTIONS. The Court allocates tax exemptions for the dependent children as follows:

Child's Name	Date of Birth (Month, Day, Year)	Party Entitled to Deduction	For Calendar Year
_____		☐ **Petitioner** ☐ **Respondent**	_____
_____		☐ **Petitioner** ☐ **Respondent**	_____
_____		☐ **Petitioner** ☐ **Respondent**	_____
_____		☐ **Petitioner** ☐ **Respondent**	_____
_____		☐ **Petitioner** ☐ **Respondent**	_____
_____		☐ **Petitioner** ☐ **Respondent**	_____

For any years following those listed above while the Child Support Order remains in effect, the parties shall repeat the above pattern of claiming deductions for each child.

☐ ☐ **Petitioner** ☐ **Respondent** may claim the allocated tax exemptions only if all support and arrears ordered for the year have been paid by December 31 of that year. An Internal Revenue Service form 8332 may need to be signed and filed with a party's income tax return. *See IRS Form 8332 for more detailed information.* https://www.irs.gov/pub/irs-pdf/f8332.pdf

☐ ☐ **Petitioner** ☐ **Respondent** may unconditionally claim the tax exemption allocated to ☐ **Petitioner** ☐ **Respondent** for income tax purposes. An Internal Revenue Service Form 8332 may need to be signed and filed with a party's income tax return. *See IRS Form 8332 for more detailed information.* https://www.irs.gov/pub/irs-pdf/f8332.pdf

Even though the court's judgment contains orders regarding medical insurance and the allocation of the right to claim the child as a dependent for the purposes of federal taxes, these orders are not binding on the IRS. Under the Affordable Care Act, the party who claims a child as a dependent on a federal tax return has the obligation to ensure that the child is covered by medical insurance and may be penalized by the IRS for failing to do so. This penalty may be imposed even if it is the other party's responsibility to carry medical insurance on the child under the Decree of Dissolution of Marriage.

L. MODIFICATION: If this is a modification of child support, all other prior orders of this Court not modified remain in full force and effect.

M. EMANCIPATION: A child is emancipated:

- On the child's 18th birthday, however if a child is still attending high school or a certified high school equivalency program, support will continue until graduation or the child reaches 19 years of age.
- On the date of the child's marriage.
- When the child is adopted.
- When the child dies.

_____ _____

Date Judicial Officer

_____

Typed or Printed Name of Judicial Officer

STIPULATION

(24) SIGNATURE BY PETITIONER AND RESPONDENT:
By signing this document, we state to the Court, under penalty of perjury, that we have read and agree to this Order and that all the information contained in it is true, correct and complete to the best of our knowledge and belief.

_____	_____
Date	Petitioner's Signature
_____	_____
Date	Respondent's Signature

If either party is represented by a lawyer, the lawyer(s) must sign below:

_____	_____
Date	Petitioner's Lawyer
_____	_____
Date	Respondent's Lawyer

Reset Form

CLERK OF THE COURT
SUPERIOR COURT OF ARIZONA

MICHAEL SAMPLE
CLERK

NAVAJO COUNTY
P.O. Box 668
Holbrook, Az 86025

TEL: (928) 524-4188
FAX: (928) 524-4261

EMPLOYMENT INFORMATION

TO BE COMPLETED BY THE NON CUSTODIAL PARENT/OBLIGOR/PAYOR ONLY

THIS FORM MUST BE COMPLETED FOR:

☐ **NOTIFICATION OF EMPLOYER**

☐ **NOTIFICATION OF A CHANGE OF EMPLOYER**

CASE NUMBER: _____ **ATLAS NUMBER**: _____

OBLIGOR/PAYOR: _____
(PERSON TO MAKE PAYMENTS)

LIST ONLY THE EMPLOYER'S NAME AND PAYROLL ADDRESS WHERE THE INCOME WITHHOLDING ORDER OR ORDER TO STOP SHOULD BE MAILED:

CURRENT EMPLOYER NAME: _____

PAYROLL ADDRESS: _____

CITY: _____ **STATE**: _____ **ZIP CODE**: _____

EMPLOYER TELEPHONE: _____

EMPLOYER FAX: _____

PAYROLL EMAIL ADDRESS (Required): _____

_____ _____
Non Custodial Parent Signature Date

Pursuant to A.R.S. § 25-504(K) Unless a court has ordered otherwise, the person ordered to pay support or spousal maintenance shall notify the clerk of superior court or the support clearinghouse in writing of the obligor's residential address and the name and address of any employer, and within 10 days of any change. Failure to do so may subject the person to sanctions for contempt of court, including reasonable attorney fees and costs.